

AGREEMENT OF SALE

THIS **AGREEMENT OF SALE** executed on the Day of March _____ of Two
Thousand Twenty Five (-03-2025):

BETWEEN:

Mr.SYED TOUSIF
S/O Mr. Syed Yaqub
Aged about 37 Years,
Residing at: #879, 12th cross,
Ambedkarnagar,Vivekanagar Post,
Koramangala 3rd Stage,
Bangalore-560047.
PAN NO. ATYPT4919J
Aadhaar No.524862852032

(hereinafter referred to as the **VENDOR**, which expression shall, wherever the context so requires or admits, mean and include, her Legal heirs, executors, administrators and assigns) of the **ONE PART**;

AND:

SMT GAYATRI R BADIGER
Aged about 40 Years **residing at:** Flat no:006, Block A, Ground
Floor, "Sai Nandana Granduer", Gottigere lake road,
Next to Nandi Retreat Apartment, Doddakammanahalli
Gottigere, Bangalore-560083.
PAN NO. AMNPB2605H
Aadhaar No. 861717000714

(herein after referred to as the **PURCHASER**, which expression shall, wherever the context so requires or admits, mean and include, his executors, administrators, Successors-in-office and assigns) of the **OTHER PART**;

WITNESSES AS FOLLOWS:

WHEREAS the Vendor herein is the sale and absolute owner of all that piece and parcel of property bearing **Site No.179 HG**, located on **Survey No.90**, bearing E-Khatha No.**150200100400921970**, bearing V.P Khatha No. **122/1/179HG**, **formed in 'NANDANAVANA HANUMAGIRI EXTENSION'** CONVERTED LAND approved by BMRDA, Government of Karnataka in its order vide No. **ALN/SR(AJ)12/96-97 dated 04/11/1996**, located in Kallubalu Village, Jigani Hobli, Anekal Taluk, Bangalore District, presently comes within the administrative jurisdiction of panchayat, which is more fully described in the schedule here under, hereinafter called as the **"Schedule Property"**.

Whereas the schedule property is self-acquired property of the Vendor and having got the same a Registered Sale Deed from M/s. Nirman Shelters (B) Pvt. Ltd., represented by its Managing Director, Sri V.Lakshminarayan by their duly appointed General Power of Attorney Holder Mr. Mohan KumarY, Vide document No.ANK-1-26130-2004-05, of Book I, Stored in CD No. CMPD155, dated: 03/03/2016, Registered in the office of the Sub-Registrar, Anekal.

AND WHERAS by virtue of the aforesaid registered Sale Deed the Vendor herein has become the owner and in possession and enjoyment of the Schedule Property. Subsequently the Vendor has obtained the E-khatha of the Schedule Property in his name in the records of the Kallubalu Village Panchayat and up to date tax has been paid in respect of the schedule property to the Kallubalu Village Panchayat.

ANDWHERAS the Vendor here in has decided to sell the aforesaid schedule property in favour of any willing Purchaser, and the Purchaser herein has approached the Vendor for Sale of the schedule property in his favor for a mutually agreed sale price.

AND WHERAS the Purchaser has been provided with copies of Absolute Sale Deeds and other relevant Govt. Authorities orders pertaining to the schedule by theVendor and the Purchaser having found the same in order.

AND WHERAS after mutual negotiations both the Vendor and the Purchaser have agreed that the total sale consideration for the sale of the Schedule Property shall be **Rs. 36,00,000/- (Rupees Thirty Six Lakhs Only).**

V. NOW THIS AGREEMENT OF SALE WITNESSES AS FOLLOWS:

1. That in pursuance of foregoing and in consideration of the mutual obligations, undertaken by the parties here to and in consideration of the payment agreed to be paid by the Purchaser to the Vendor, the Vendor hereby agree to convey/transfer the Schedule Property in favor of the Purchaser subject to the terms and conditions hereunder written.
2. The Purchaser has paid a sum of **Rs. _____** /- **(Rupees _____ Only)** in the following manner as advance payment, which the Vendor hereby acknowledges the receipt of the same.
3. The Purchaser shall pay the balance amount of **Rs. _____** /- **(Rupees _____ Only)** to the Vendor on or before at the time of registration of the sale deed
4. The Vendor and the Purchaser agree to register the Deed of Sale of the schedule property on or before **(One) Month** from the date of this agreement. Time is the essence of this sale agreement and the Purchaser promise to adhere to the one month (Thirty Days) strictly to complete the sale transaction in all respects
5. That the Vendor shall delivery to the Purchaser all the original title deeds and the vacant possession of the schedule property immediately after registration of Sale Deed.
6. The Vendor shall pay and discharge all statutory dues payable in respect of the Schedule Property such as property tax, and all other charges leviable by the local authorities up to the date of execution and registration of absolute deed of Sale in favor of the Purchaser by the Vendor.
7. That the Vendor shall give all undertakings/no objections to the Purchaser for obtaining the necessary permission or clearance required for conveyance of the Schedule Property in favor of the Purchaser.
8. That the Vendor shall sell and Purchaser shall purchase the Schedule Property free from all charges, claims, lien, encumbrances, tenancy claims, lease hold rights, acquisition proceedings, court attachments, pending litigation, maintenance of minor suits or any other demands, or claims and free from any defect in title with clear marketable little.

9. That the Purchaser shall bear all charges towards the payment of stamp duty, registration free and professional charges in respect of execution and registration of the absolute deed of sale.
10. That after the execution of this agreement of sale, the Vendor shall not enter into any kind of sale transaction with the third party or parties regarding the sale of Schedule Property during the pendency of this agreement.
11. That the Vendor does hereby confirms that he has not entered into any agreement or taken advance from any third party for sale of the schedule property on or prior to this date.
12. In the event of any dispute in the implementation of the Agreement or any of the terms herein, the matter shall be referred to Conciliation by a Sole Conciliator in the Page 5 first instance, who shall endeavor to dispose of the dispute within 10 days from the date of first hearing, failing which to Arbitration by a Sole Arbitrator, under the Arbitration & Conciliation Act, 1996, who shall endeavor to dispose of the dispute as expeditiously as possible, but not later than two months from the date of first hearing.
13. Notwithstanding anything hereinbefore contained in the event of failure of the transaction through restrictive operation of law or any other good and sufficient reason not attributable to the fault of either the Vendor or the purchaser then and in that event, the Vendor and purchaser shall each be restored to the status quo ante in terms of which the earnest money and any further advances paid shall be refunded to the purchasers.
14. In the event, the Purchaser fails to fulfil their obligations Of sale transaction, pay the balance sale price and register the sale deed, the Vendor shall forfeit a sum of Rs.1,00,000/- paid out of the advance sale consideration and return the balance to the Purchase without prejudice to the rights of the Vendor to sue for specific performance of the contract.

SCHEDULE PROPERTY

All that piece and parcel of the Converted residential bearing **Site No.179-HG**, located on **Survey No.90**, bearing E-Khatha No. **150200100400921970**, bearing V.P Khata No. **122/1/179-HG,formed in 'NANDANAVANA HANUMAGIRI EXTENSSION'** CONVERTED LAND approved by BMRDA, Government of Karnataka in its order vide No.ALN/SR(AJ)12/96-97 **dated: 04.11.1996** located in Kallubalu Village, Jigani Hobli, Anekal Taluk, Bangalore District.

MEASURING:

East to West : 30 Feet,
North to South : 50 Feet,
Totally measuring :1500Sq.ft.

ANDBOUNDED AS FOLLOWS:

East by : Site No. 178-HG
West by :Site No .28-HG,
North by :Private Property,
South by :Road.

Duly converted for residential Site vide Order No. **ALN/SR(AJ)12/96-97, Dated: 04/11/1996**, Assistant Commissioner Bangalore District, Bangalore South Sub Division, Government of Karnataka.

IN WITNESS WHEREOF the parties herein have executed this Agreement of Sale in the presence of the witnesses attesting hereunder:

WITNESSES

VENDOR

1)

2)

PURCHASE

